

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
MELVIN FITZPATRICK and ALPHONSO LOWE

Plaintiffs,

-against-

CITY OF NEW YORK, CHRISTIAN MAS, individually
and officially in his capacity as New York City police
officer, and JOHN or JANE DOE 1-10, individually and
officially in their capacities as New York City police
officers,Defendants.
-----X

Index No.:

Purchased:

Plaintiffs designate

Bronx County as the place of trial

The basis of the venue is where the
tort aroseSUMMONS**TO THE ABOVE-NAMED DEFENDANT:**

YOU ARE HEREBY SUMMONED, to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
February 28, 2020

SIM & DEPAOLA, LLPBY: *Peter Sim, Esq.**Attorneys for Plaintiffs*

42-40 Bell Boulevard, Suite 201

Bayside, New York 11361

(718) 281-0400

TO: CORPORATION COUNSEL
OF THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

Police Officer Christian MAS
Shield #967, Tax ID 956893
NYPD 43rd Precinct
900 Fteley Avenue
Bronx, New York 10473

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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MELVIN FITZPATRICK AND ALPHONSO LOWE,

Plaintiffs,

Index No.:

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-against-

VERIFIED COMPLAINT

CITY OF NEW YORK, CHRISTIAN MAS, individually and officially in his capacity as New York City police officer, and JOHN or JANE DOE 1-10, individually and officially in their capacities as New York City police officers,

Defendants.

-----X
Plaintiffs, MELVIN FITZPATRICK and ALPHONSO LOWE, by their attorneys, Sim & DePaola, LLP, for their complaint against the above Defendants, City of New York, CHRISTIAN MAS, individually and officially in his capacity as New York City police officer, and JOHN or JANE DOE 1-10, individually and officially in their capacities as New York City police officers, alleges as follows:

1. This is a civil rights action in which Plaintiffs seek relief through 42 U.S.C §§ 1983 for the violations of their civil rights protected by Constitution of the United States and the Constitution and laws of the state of New York.
2. Plaintiffs' claims arise from a January 17, 2019 incident in which Defendants, acting under color of state law, unlawfully searched, arrested and detained Melvin Fitzpatrick and Alphonso Lowe. As a direct and proximate result, Mr. Fitzpatrick and Mr. Lowe were unlawfully detained within the jurisdictional confines of Bronx County, New York. Plaintiffs were deprived of their liberty for approximately twenty-two (22) hours; suffered serious physical injuries and severe emotional distress. Plaintiffs received Adjournment in Contemplation of

Dismissal (ACD) on January 18, 2019 from the Bronx Criminal Court and all charges were dismissed on July 17, 2019.

3. Plaintiffs seek monetary damages (compensatory and punitive) against Defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court may deem just and proper.

PARTIES

4. Plaintiff Melvin Fitzpatrick ("Mr. Fitzpatrick") resides at 2132 Mohegan Ave., Apt. 2K, Bronx County, State of New York.

5. Plaintiff Alphonso Lowe ("Mr. Lowe") resides at 2132 Mohegan Ave., Apt. 2K, Bronx County, State of New York.

6. The Defendant City of New York ("City") is a municipal corporation organized under the laws of the State of New York.

7. At all times relevant hereto, Defendant City, acting through the New York City Police Department ("NYPD") was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel, including police officers, detectives and supervisory officers as well as the individually named Defendants herein.

8. In addition, at all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.

9. Defendant CHRISTIAN MAS ("MAS") was, at all times here relevant, a police officer and/or detective employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant MAS was, at all times relevant herein, a Police Officer and/or detective under Shield No. 967, Tax Reg. No. 956893, at 43rd

Precinct, 900 Fteley Avenue, Bronx, New York 10473. Defendant MAS is being sued in his individual and official capacity.

10. At all times relevant Defendants John or Jane Doe 1-10 were police officers, detectives, supervisors, policy makers and/or officials employed by the NYPD. At this time, Plaintiffs do not know the true names and/or tax registration numbers of Defendants John or Jane Doe 1 through 10 but is within knowledge of Defendants.

11. At all times relevant herein, Defendants John or Jane Doe 1-10 were acting as agents, servants and employees of the City of New York, the NYPD. Defendants John or Jane Doe 1 through 10 are being sued in their individual and official capacities.

12. At all times here mentioned Defendants, including MAS and John or Jane Doe 1-10, were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

13. Within 90 days of accrual dates for these claims, Plaintiffs timely filed written notices of claims with the New York City Office of the Comptroller.

14. Over 30 days have elapsed since the filing of those notices, and this matter has not been settled or otherwise disposed of.

15. Plaintiffs have complied with municipal defendant's request for an oral examination pursuant to Section 50-H of the New York General Municipal Law and/or the Public Authorities Law and/or no such request was made within the applicable period.

16. This action has been commenced within one year and ninety days from the relevant accrual dates.

FACTUAL CHARGES

17. On January 17, 2019, at approximately 3:15 p.m., Mr. Fitzpatrick and Mr. Lowe were inside the store at the vicinity located at 831 Rosedale Avenue Bronx, New York 10473.
18. While Mr. Fitzpatrick and Mr. Lowe were trying to pay for the food they intended to purchase, they were confronted by two (2) store employees who demanded to search Mr. Fitzpatrick's personal bag. The store employees physically attacked Mr. Fitzpatrick and Mr. Lowe after they rightfully refused to comply with the unlawful demand. Mr. Lower suffered a cut and was bleeding on his upper lip as a direct result of the physical attack initiated by the store employees.
19. Defendants, including MAS, and John or Jane Doe 1–10, arrived at the store shortly after the attack stopped.
20. Upon their arrival to the store, instead of questioning the store employees and identifying the attackers, Defendants, including MAS and John or Jane Doe 1-10, illegally ordered Mr. Fitzpatrick and Mr. Lowe to stay where they were standing.
21. Defendants, including MAS and John or Jane Doe 1 – 10, proceeded to forcibly grab both Plaintiffs' arms, pushed and threw them to stand against the wall inside the store despite the fact that Plaintiffs' did not commit any crimes or violations of laws.
22. Defendants, including MAS and John or Jane Doe 1-10, proceed to grab Mr. Fitzpatrick's personal bag with no probable cause and illegally searched it. Defendants then proceed to search Plaintiffs' persons.
23. Defendants, including MAS and John or Jane Doe 1-10, proceeded to handcuff Mr. Fitzpatrick and Mr. Lowe in an excessive fashion, shoved them with excessive force into a police vehicle and placed them inside the vehicle.

24. Mr. Fitzpatrick and Mr. Lowe were forced to sit in the back seat of the vehicle with their wrists handcuffed for about thirty (30) minutes.
25. At no time did Mr. Fitzpatrick and Mr. Lowe steal any property from the store.
26. At no time did Plaintiffs engage in any kind of disorderly conduct.
27. At all times relevant Defendants, including MAS and John or Jane Doe 1-10 did not have arrest warrants for Plaintiffs.
28. Mr. Fitzpatrick and Mr. Lowe were handcuffed and suffered multiple assaults and batteries, caused by Defendants, including MAS and John or Jane Doe 1-10, including but not limited to, being placed in handcuffs too tightly, being pushed to stand against the wall by excessive force, being illegally searched both their persons and personal belongings.
29. Defendants, including MAS and John or Jane Doe 1-10, were fully aware that Plaintiffs did not steal sirloin steak from the store because no sirloin steak was found in Plaintiffs' possession. Yet Defendants, including MAS, and John or Jane Doe 1-10, knowingly and intentionally made false statements and allegations against Plaintiffs; caused Plaintiffs were falsely arrested and charged with i) Petty Larceny; ii) Criminal Possession of Stolen Property; and iii) Disorderly conduct.
30. Plaintiffs were rear handcuffed by Defendants, including MAS and John or Jane Doe 1-10, and were illegally searched again outside the store; and then were placed in a NYPD vehicle to be transported to NYPD local precinct.
31. Upon arrival at said location or while Plaintiffs remained detained at the NYPD precinct, they were illegally searched, questioned, photographed and fingerprinted by, or at the direction of Defendants, including MAS and John or Jane Doe 1-10.
32. Defendant CHIRSTIAN MAS was Plaintiffs' arresting officer and signed their criminal court complaint, knowingly and falsely accusing Plaintiffs of Petty Larceny, Criminal Possession

of Stolen Property and Disorderly conduct, all of which Defendants, including MAS and John or Jane Doe 1-10, knew to be untrue.

33. Plaintiffs were arraigned and formally charged with one (1) count of Petty Larceny, one (1) count of Criminal Possession of Stolen Property and one (1) count of Disorderly Conduct.

34. At no time did Defendants, including MAS and John or Jane Doe 1-10, ever observe Plaintiffs possessed the said sirloin steak or engaged in any kind of disorderly conduct.

35. Plaintiffs were transferred to New York Police Department, where they were unlawfully detained for about twenty-two (22) hours until they were released on or about January 18, 2019.

36. Plaintiffs were compelled to return to court, to contest the false charges levied against them.

37. Plaintiffs received Adjournment in Contemplation of Dismissal from the Bronx Criminal Court, on January 18, 2019, which all charges were dismissed on July 17, 2019.

38. Defendants, including MAS, and John or Jane Doe 1-10 did not possess a valid judicially authorized arrest warrant for Plaintiffs.

39. Defendants, including MAS, and John or Jane Doe 1-10 did not possess probable cause or other justification for the arrest and seizure of Plaintiffs' persons and properties.

40. Defendants, including MAS, and John or Jane Doe 1-10 had no probable cause or reasonable suspicion to search, arrest or detain both Plaintiffs.

41. Defendants, including MAS, and John or Jane Doe 1-10 never possessed probably cause to believe a prosecution would succeed against Plaintiffs, or that Plaintiffs were guilty of any crime, as Defendants, including MAS, and John or Jane Doe 1-10 were fully aware, at all times, that they did not find sirloin steak in Plaintiffs' possession nor did they observe Plaintiffs engaged in any kind of disorderly conduct.

42. Plaintiff asserts that Defendants, including MAS, John and/or Jane Does who violated Plaintiff's civil rights, are part of a larger pattern and practice of similar misconduct, which is so widespread, pervasive and consistent throughout the NYPD and the City of New York that the commission such constitutionally violative behavior has become tantamount to an official policy or custom within the NYPD and City of New York or, at the very least, conclusive evidence that the City and the NYPD have either tacitly approved of such egregious wrongdoings or that they have become deliberately indifferent to the civil rights of those who may come into contact their police officers.

43. The individually named Defendants herein, as well as other officers serving in the employ of the NYPD and City of New York, have blatantly, shamelessly, consistently and repeatedly engaged in conduct violative of the civil rights guaranteed and protected by Constitution of the United States, in addition to the laws and Constitution of the State of New York, all without incurring any ramifications for such misconduct and, ostensibly, with the full and complete blessing of the NYPD, the City of New York and their respective policymakers and supervisors.

44. *The New York Times*, as well as numerous other reputable journalistic enterprises, have reported on the widespread corruption within the NYPD and City of New York; particularly the incredibly disconcerting proclivity of many NYPD officers to lie about subject matters that are materially relevant to criminal prosecutions, including the complete fabrication of arrest evidence and witnesses. Attached hereto, as Exhibit A, and incorporated by reference herein, are various articles and reports detailing the magnitude and overwhelming prevalence of incidents, in which NYPD officers were caught lying, including instances that resulted in the arrest and imprisonment of innocent people. Also detailed, is the NYPD's obstinate refusal to effectuate corrective or preventive measures to combat the inevitable recurrence of such misdeeds, and

perhaps most troubling, the NYPD's alarming tendency to, instead, reward and promote these officers, including those who were inculcated via some incontrovertible form of evidence.

45. On March 18, 2018, *The New York Times* published an explosive article, entitled "Promotions, Not Punishments for Officers Accused of Lying," written by Joseph Goldstein. Mr. Goldstein shines a light on the multitude of flaws within the CCRB and the NYPD, highlighting the fact that the substantiation of a claim against an officer will invariably rely on the presence of incontrovertible proof against the officer. Due to the rarity availability of this type of evidence, an alarmingly small percentage of officer misconduct claims are substantiated. The CCRB is further handicapped by a terribly designed system that requires evidence of a virtually indisputable nature to substantiate any claim against an officer. The article also details the NYPD's persistent reluctance to investigate or discipline officers who lie and even posits that this reluctance is a significant cause of the lying pandemic within the NYPD. The article references various officers and detectives who were the subject of credible accusations relating to the officers' intentionally false statements, with some allegations coming from federal and state judges.

46. On September 12, 2019, *The New York Times* published another article by Joseph Goldstein, entitled "Officers Said They Smelled Pot. The Judge Called Them Liars." Unsurprisingly, this article dealt with the unusually high frequency of officers using the odor of marijuana to excuse a search that conspicuously does not result in the recovery of any marijuana. It should not require an article in *The New York Times* to call attention to such patently disingenuous tactics, but has become necessary for a variety of reasons, including the NYPD's failure to correct such behavior, the willingness of prosecutors and judges to credit the lying officers and the increasing rate of occurrence.

47. On April 24, 2019, *The New York Times* published an article, entitled “Detective’s Lies Sent Three People to Prison, Prosecutors Charge,” by Sean Piccolo, detailing the lies of NYPD Second Grade Detective Joseph Franco and how those lies resulted in the imprisonment of at least three innocent people. The article described how Det. Franco lied about observing drug transactions on at least three separate occasions, lies that were only uncovered through contradictory video evidence. Det. Franco’s lies resulted in the innocent individuals each being sentenced to prison terms in excess of one-year.

48. Other articles include: (i) “Testifying’ by Police: A Stubborn Problem,” by Joseph Goldstein, *The New York Times*, March 18, 2018; (ii) “New York Detective Charged with Faking Lineup Results,” by Joseph Goldstein, *The New York Times*, February 17, 2018; (iii) “He Excelled as a Detective, Until Prosecutors Stopped Believing Him,” by Joseph Goldstein, *The New York Times*, October 17, 2017; (iv) “Review Board Notes Rise in New York Police Officers’ False Statement,” by J. David Goodman, *The New York Times*, May 14, 2015; (v) “In Brooklyn Gun Cases, Suspicion Turns to the Police,” by Stephanie Clifford, *The New York Times*, December 11, 2014; (vi) “Detective is Found Guilty of Planting Drugs,” by Tim Stelloh, *The New York Times*, November 1, 2011; and (vii) “The Drugs? They Came From the Police,” by Jim Dwyer, *The New York Times*, October 13, 2011.

49. The NYPD has a longstanding and ignominious record of failing to discipline its officers, or even entertaining allegations of wrongdoing against them. On June 26, 2019, *The New York Times* published an article, entitled “2,495 Reports of Police Bias. Not One Was Deemed Valid by the N.Y.P.D.” This article reported that within the last five (5) years, almost 2,500 separate individuals have filed formal complaints with the NYPD alleging that an officer acted with bias toward them, with not a single one being substantiated by the NYPD. Such a finding is plainly incredible and obviously the result of deliberately poor or nonexistent investigatory protocols.

The report further impugned the NYPD's commitment to combat the prejudices and the biases exhibited by many of its officers.

50. Upon information and belief, the NYPD, the City of New York, and their respective policymakers, officials or supervisors have imposed, tacitly approved or acquiesced to policies, customs, or patterns and practices within the NYPD that resulted in Plaintiff's arrest without probable cause.

51. Upon information and belief, the NYPD, the City of New York, and their respective policymakers or supervisors have failed to provide adequate training regarding the identification of probable cause, reasonable suspicion or the appropriate amount of force to be used.

52. Defendants' actions, pursuant to Plaintiff's underlying arrest, which occurred without even the semblance of probable cause, were so blatantly violative of Plaintiff's civil rights that the tacit approval of identical or similar acts by the policymakers or supervisors of the NYPD and the City of New York, as well as their deliberate indifference towards the rights of any individuals who may come into contact with Defendants, should be inferred, because such flagrant deprivations of constitutionally protected rights could not and would not occur without the tacit approval or deliberate indifference regarding the commission of such violations by the policymakers or supervisors of the NYPD and City of New York.

53. Upon information and belief, further details and facts, relating to the unlawful policies, customs or patterns and practices of the NYPD, City of New York and their respective policymakers, supervisors, police officers or employees, will become known after the completion of discovery, as such information is presently within the exclusive possession of Defendants, the NYPD and City of New York.

54. Upon information and belief, the personnel files, records and disciplinary histories of the officer Defendants will reveal a history of Constitutional violations indicative of defendant

City's knowledge that the individual officer Defendants were unfit for employment as NYPD officers, or for employment in general, and that the probability of the individually named Defendants committing similar violations in the future was extremely high.

55. Upon information and belief, said personnel files, records and disciplinary histories will conclusively show that the City and the NYPD were fully aware of Defendants' past constitutional violations, the unacceptably high probability for the recurrence of similar transgressions, the unreasonably dangerous situations that were likely to result from their hiring or retention, as well as their unsuitability for employment as law enforcement officers, or for employment in general, and that the NYPD and City of New York failed to engage in any preventive or corrective action intended to diminish the likelihood of recurrence for such violations, which is tantamount to the City's tacit approval of such misconduct or the City's deliberate indifference towards the civil rights of those who may interact with its employees, including Christian MAS.

56. Upon information and belief, the NYPD and City of New York and have failed, or outright refused, to correct the individually named Defendants' predilections to engage in unconstitutional behavior or attempt to prevent the recurrence of such misconduct

57. The aforementioned acts of Defendants, including the City, Christian MAS, directly or proximately resulted in the deprivation or violation of Plaintiff's civil rights, as guaranteed and protected by the Fourth, Sixth and Fourteenth Amendments to the United States Constitution, as well as the laws and Constitution of the State of New York.

58. As direct or proximate results of said acts, Plaintiff was caused to suffer the loss of his liberty, irreparable reputational harm, loss of earnings and potential earnings, physical injury, as well as severe and permanent emotional distress, including fear, embarrassment, humiliation, traumatization, frustration, extreme inconvenience, and anxiety.

FIRST CAUSE OF ACTIONUnlawful Search and Seizure Under
New York State Law

59. The above paragraphs are here incorporated by reference as though fully set forth.

60. Defendants subjected Plaintiff and his property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

61. Plaintiff was conscious and fully aware of the unreasonable searches and seizures to his person and property.

62. Plaintiff did not consent to the unreasonable searches and seizures to his person or property.

63. The unreasonable searches and seizures to Plaintiff's person and property were not otherwise privileged.

64. Accordingly, Defendants violated Plaintiff's right to be free from unreasonable searches and seizures, pursuant to the Fourth Amendment to the United States Constitution and Article I, Section 12, of the New York State Constitution.

65. Defendant City of New York, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

66. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SECOND CAUSE OF ACTIONUnlawful Search and Seizure Under
42 U.S.C. § 1983 Against Individual Defendants

67. The above paragraphs are here incorporated by reference as though fully set forth.

68. Defendants subjected Plaintiff and his property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

69. Plaintiff was conscious and fully aware of the unreasonable searches and seizures to his person and property.

70. Plaintiff did not consent to the unreasonable searches and seizures to his person or property.

71. The unreasonable searches and seizures to Plaintiff's person and property were not otherwise privileged.

72. Accordingly, Defendants violated Plaintiff's right to be free from unreasonable searches and seizures, pursuant to the Fourth Amendment to the United States Constitution and Article I, Section 12, of the New York State Constitution.

73. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRD CAUSE OF ACTION

False Arrest and False Imprisonment Under
New York State Law

74. The above paragraphs are here incorporated by reference as though fully set forth.

75. Defendants subjected Plaintiff to false arrest, false imprisonment, and deprivation of liberty without probable cause.

76. Plaintiff was conscious of his confinement.

77. Plaintiff did not consent to his confinement.

78. Plaintiff's arrest and false imprisonment was not otherwise privileged.

79. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

80. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FOURTH CAUSE OF ACTION

False Arrest and False Imprisonment Under
42 U.S.C. § 1983 Against Individual Defendants

81. The above paragraphs are here incorporated by reference as though fully set forth.
82. The Defendants violated the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiff.
83. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff was carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.
84. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiff.
85. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FIFTH CAUSE OF ACTION

Assault and Battery Under
New York State Law

86. The above paragraphs are here incorporated by reference as though fully set forth.
87. Defendants made Plaintiff fear for his physical well-being and safety and placed him in apprehension of immediate harmful or offensive touching.
88. Defendants engaged in and subjected Plaintiff to immediate harmful or offensive touching and battered him without his consent.
89. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
90. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

SIXTH CAUSE OF ACTION

Excessive Force Under
42 U.S.C. § 1983 Against Individual Defendants

91. The above paragraphs are here incorporated by reference as though fully set forth.
92. The Defendants violated Plaintiff's rights under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiff's consent.
93. Defendants engaged in and subjected Plaintiff to immediate harmful and/or offensive touching and battered him without his consent.
94. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

SEVENTH CAUSE OF ACTION
Malicious Abuse of Process Under
New York State Law

95. The above paragraphs are here incorporated by reference as though fully set forth.
96. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.
97. Defendants had no excuse or justification to forcibly detain or initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.
98. Defendants intended to inflict substantial harm upon Plaintiff.
99. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.
100. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
101. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

EIGHTH CAUSE OF ACTION

Malicious Abuse of Process Under
42 U.S.C. § 1983 Against Individual Defendants

102. The above paragraphs are here incorporated by reference as though fully set forth.
103. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.
104. Defendants had no excuse or justification to forcibly detain and initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.
105. Defendants intended to inflict substantial harm upon Plaintiff.
106. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.
107. Defendants' actions deprived Plaintiff of his right to free from illegal searches and seizures, as well as his right not to be deprived of his liberty without the due process of law.
108. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

NINETH CAUSE OF ACTION
Denial of Right to Fair Trial Under
New York State Law

109. The above paragraphs are here incorporated by reference as though fully set forth herein.
110. Defendants fabricated false evidence to be used against Plaintiff that was likely to influence a jury's decision.
111. Defendants forwarded said false information to the District Attorney's Office.
112. Defendants' actions resulted in post-arraignment deprivation to Plaintiff's liberty and freedom of movement.

113. Accordingly, Defendants violated Plaintiff's right to a fair trial, pursuant to Article I, Sections 1, 2 and 6 of the New York State Constitution, as well Article II, Section 12, of the New York State Civil Rights Law.

114. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

115. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TENTH CAUSE OF ACTION

Denial of Right to Fair Trial Under
42 U.S.C. § 1983 Against Individual Defendants

116. The above paragraphs are here incorporated by reference as though fully set forth.

117. Defendants fabricated false evidence to be used against Plaintiff that was likely to influence a jury's decision.

118. Defendants forwarded said false information to the District Attorney's Office.

119. Defendants' actions resulted in post-arraignment deprivation to Plaintiff's liberty and freedom of movement.

120. Accordingly, Defendants violated Plaintiff's right to a fair trial, pursuant to the Sixth and Fourteenth Amendments to United States Constitution

121. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

ELEVENTH CAUSE OF ACTION

Deprivation of Rights and Denial of Equal Protection of the Laws under
New York State law

122. The above paragraphs are here incorporated by reference as though fully set forth herein.

123. Plaintiff, as a Hispanic male, is a member of a racial minority and protected class.

124. Defendants discriminated against Plaintiff on the basis of his race, color or ethnicity.

125. Defendants also engaged in the selective of Plaintiff, in comparison to others similarly situated.

126. Defendants' selective treatment of Plaintiff was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiff's exertion of his Constitutional rights, or a malicious or bad faith intent to injure Plaintiff.

127. Defendants applied facially neutral laws against Plaintiff in a discriminatory manner.

128. Defendants, motivated by discriminatory animus, applied facially neutral statutes with adverse effects against Plaintiff.

129. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiff.

130. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

131. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TWELVETH CAUSE OF ACTION

Deprivation of Rights and Denial of Equal Protection of the Laws under
42 U.S.C. §§ 1981 and 1983 Against Individual Defendants

132. The above paragraphs are here incorporated by reference as though fully set forth herein.

133. Plaintiff, as a Hispanic male, is a member of a racial minority and protected class.

134. Defendants discriminated against Plaintiff on the basis of his race, color or ethnicity

135. Defendants also selectively treated Plaintiff in comparison to others similarly situated.

136. Defendants' selective treatment of Plaintiff was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiff's exertion of his Constitutional rights, or malicious or bad faith intent to injure Plaintiff.

137. Defendants applied facially neutral laws against Plaintiff in a discriminatory manner.

138. Defendants, motivated by a discriminatory animus, applied facially neutral penal statutes with adverse effects against Plaintiff.

139. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiff.

140. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRTEENTH CAUSE OF ACTION

Conspiracy to Interfere with Civil Rights and Failure to Prevent the Conspiracy under
42 U.S.C. §§ 1981, 1983, 1985 and 1986 Against Individual Defendants

141. The above paragraphs are here incorporated by reference as though fully set forth herein.

142. Defendants engaged in a conspiracy against Plaintiff to deprive Plaintiff of the equal protection of the laws, or of the privileges and immunities under the laws.

143. Defendants committed overt acts in furtherance of their conspiracy against Plaintiff.

144. Plaintiff sustained injuries to his person or was deprived of rights or privileges of citizens of the United States.

145. Defendants' conspiracy was motivated by some racial, or otherwise class-based, invidious discriminatory animus.

146. The Defendants that did not engage or participate in the conspiracy to interfere with Plaintiff's civil rights, had knowledge that acts in furtherance of the conspiracy were about to be committed or being committed, possessed the power to prevent or aid, and neglected to do so.

147. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FOURTEENTH CAUSE OF ACTION

Failure to Intervene Under
New York State Law

148. The above paragraphs are here incorporated by reference as though fully set forth herein.

149. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

150. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

151. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FIFTEENTH CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 Against Individual Defendants

152. The above paragraphs are here incorporated by reference as though fully set forth herein.

153. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

154. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.

155. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SIXTEENTH CAUSE OF ACTION

Negligent Hiring, Training, Retention and Supervision Under
New York State Law

156. The above paragraphs are here incorporated by reference as though fully set forth.

157. Defendant City owed a duty of care to Plaintiff to adequately hire, train, retain and supervise its employee Defendants.

158. Defendant City breached those duties of care.

159. Defendant City placed Defendants in a position where they could inflict foreseeable harm.

160. Defendant City knew or should have known of its employee Defendants' propensity for violating the individual rights granted under the United States Constitution and the laws of the State of New York, prior to the injuries incurred by Plaintiff.

161. Defendant City failed to take reasonable measures in hiring, training, retaining and supervising its employee Defendants that would have prevented the aforesaid injuries to Plaintiff.

162. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SEVENTEENTH CAUSE OF ACTION

Municipal "*Monell*" Liability Under
42 U.S.C. § 1983 Against Defendant City

163. The above paragraphs are here incorporated by reference as though fully set forth.

164. Defendant City maintained a policy or custom that caused Plaintiff to be deprived of his civil rights, tacitly approved of such violative conduct or was deliberately indifferent toward the potential exposure of individuals, such as Plaintiff, to such violative behavior.

165. Defendant City's employee police officers have engaged in an illegal pattern and practice of misconduct, so consistent and widespread that it constitutes a custom or usage, of which a supervisor or policymaker must have been aware of.

166. Defendant City and its policymakers failed to provide adequate training or supervision to their subordinates to such an extent that is tantamount to a deliberate indifference toward the rights of those who may come into contact with defendant City's employees.

167. Defendant City's employees engaged in such egregious and flagrant violations of Plaintiff's Constitutional rights that the need for enhanced training or supervision is obvious and

equates to a display of deliberate indifference by defendant City and its policymakers toward the rights of individuals, who may come into contact with defendant City's employees.

168. Defendant City's repeated refusal or failure to install or apply corrective or preventive measures constitutes the tacit approval of such violative behavior or a deliberate indifference to the rights of those who may be affected by such behavior.

169. Defendant City's conduct caused the violation of Plaintiff's civil rights, pursuant to Constitution of the United States.

170. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

WHEREFORE, Plaintiff respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) In favor of Plaintiff in an amount to be determined by a jury for each of Plaintiff's causes of action;
- b) Awarding Plaintiff punitive damages in an amount to be determined by a jury;
- c) Awarding Plaintiff compensatory damages in an amount to be determined by a jury;
- d) Awarding Plaintiff reasonable attorneys' fees and costs pursuant to 42 U.S.C. § 1988; and
- e) Granting such other and further relief as this Court deems just and proper.

JURY DEMAND

Plaintiffs demand a trial by jury.

Dated: February 28, 2020

Respectfully submitted,



SIM & DEPAOLA, LLP

BY: *Peter Sim, Esq.*

Attorneys for Plaintiffs

42-40 Bell Boulevard Suite 201

Bayside, New York 11361

(718) 281-0400

ATTORNEY VERIFICATION

I, **Peter Sim**, an attorney admitted to practice in the courts of New York State, state that I am a partner of the firm of **SIM & DEPAOLA, LLP**, the attorneys of record for Plaintiffs in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiffs is because Plaintiffs reside outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
February 28, 2020



PETER SIM, ESQ.

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

MELVIN FITZPATRICK and ALPHONSO LOWE,

Plaintiffs,

-against-

THE CITY OF NEW YORK, CHRISTIAN MAS
individually and officially in his capacity as New York City
police officer, and JOHN or JANE DOE 1-10
individually and officially in their capacities as New York City
police officers,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

SIM & DEPAOLA, LLP

BY: Peter Sim, Esq.

Attorney for Plaintiffs

42-40 Bell Boulevard, Ste. 201

Bayside, NY 11361

Tel. (718) 281-0400

To: CORPORATION COUNSEL OF THE CITY OF NEW YORK

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.

Dated

Attorney(s) for
Plaintiffs